TECHNICAL PARTNERSHIP PROPOSAL · AUGUST 2026

BUILD IT WITH ME

An equity partnership for the person who will lead the technology of DLANG Sports OS — and a permanent, growing stream of paid delivery work alongside it.

- Four structures, priced, with the recommendation and the reasoning
- What you would earn: equity, retainer and a share of every club onboarded
- The guardrails that protect both sides, written before either of us needs them
- A five-week paid trial before anyone signs anything

From: Derrick Lang, Founder & CEO, DLANG Sports OS
Companion documents: Business Plan (46pp), 90-Day Operational Rollout, Financial Model — all available on request
Every figure here is live from the financial model, CTO_Package sheet
Confidential.

00 THE OFFER, ON ONE PAGE

If you read nothing else, read this. The detail behind every line is in the sections that follow.

	The recommended structure
Role	CTO and technical co-founder. You lead the company's technical function and hold primary authority over technical implementation. I lead product strategy, pricing and commercial execution. Material decisions affecting budget, regulatory exposure, customer commitments, intellectual-property ownership or company strategy require joint approval. All technology and intellectual property remain exclusively owned by the company.
Equity	20% of the company, granted before the investment round closes. After the round and a 10% option pool that settles at 16.2%.
Vesting	Four years, twelve-month cliff, monthly thereafter. I reverse-vest my own holding on the identical schedule from the same date.
Cash — Year 1	CHF 1,200 per month retainer, plus 25% of every onboarding fee the company collects. About CHF 16,400 in the first year.
Cash — Year 2	CHF 4,000 per month, plus a 20% onboarding share, plus project delivery. About CHF 65,600.
Cash — Year 3	CHF 7,000 per month, plus a 15% onboarding share, plus project delivery. About CHF 120,100.
Three-year cash total	About CHF 202,100, including roughly CHF 55,700 of onboarding and project-delivery income that grows with the company while stepping down as salary increases.
Equity value	On the base case — 118 clubs and CHF 648,000 of ARR at the end of Year 3, at a 4× ARR trade sale — your 16.2% is worth about CHF 420,000. On the bear case, about CHF 232,000. On the bull case, about CHF 533,000.
Commitment	Four to five days a week. This is not a side project and I will not pretend it can be.
Before anything is signed	A five-week paid engagement at CHF 9,000–11,000 fixed, building the payment reconciliation chain. If either of us does not want to continue afterwards, we shake hands and you keep the fee.
What I will not do	Promise you a salary I cannot fund, tell you the bull case is the plan, or ask you to work for equity alone. The cash above is modest but it is real and it is already budgeted.

THE HONEST HEADLINE

DLANG Sports OS has a working prototype, a production application build, a live 145-athlete academy to deploy into, a full set of sales assets, and a EUR 50,000 round in progress. It has zero paying external clubs and no measured customer outcomes. Both halves of that sentence are true and you should weigh both.

What I am offering is not a job. It is a partnership in a company that is early enough to be genuinely risky and far enough along that the risk is about execution rather than about whether the thing exists.

01 WHY THIS CONVERSATION, AND WHY NOW

1.1 What the company is

DLANG Sports OS is an operating system for the organisations that run youth and club sport — academies, camps, clubs, and the schools and federations behind them. It replaces the six disconnected tools a typical organisation runs on today with a single system handling registration, payment, scheduling, attendance, communication and reporting, in four languages, on Swiss payment rails.

The beachhead is Romandie, then German-speaking Switzerland, then DACH. The wedge is camps and programme-revenue operators rather than volunteer associations, because those are the organisations that collect real money and feel real administrative pain.

1.2 What exists today

Asset	State	Honest assessment
Clickable prototype	51 views, 6 personas, complete design system, offline-capable demo	Excellent as a sales instrument and as a specification. About 12–15% of a sellable product as software. Roughly a third of its controls do nothing.
Production application	Next.js 15, React 19, Supabase with row-level security, Stripe, Resend, migrations, a security hardening pass and a deployment runbook	This is the real asset, and it is the thing you would be taking over. It has not been through an independent audit and it has never carried a real club's money.
Reference customer	Swiss Prep Sports Academy / DLang Basketball, 145+ athletes	Yours to break things in. Real athletes, real payments, real consequences.
Domain work	Feature priority matrix, five-role permissions model, six documented user journeys with friction points and explicit scope cuts, AI module specification	Months of product thinking already done. You would not be starting from a blank page or from my guesses about what clubs need.
Commercial	Business plan, financial model, 90-day rollout, investor deck, pricing architecture, beta programme	All reconciled to one set of numbers. You can audit every figure.
Paying external clubs	Zero	The entire plan is about changing this number, and nothing else matters until it changes.

1.3 Why I need a technical partner rather than a contractor

I have modelled this carefully and the answer is not sentimental. Engineering is CHF 54,000 of a CHF 112,800 Year-1 operating cost — 48% of everything the company spends. Purchased at contractor rates, that line alone is the difference between the company reaching Month 12 and not.

	Contractor model	Partnership model
Year-1 engineering cash	CHF 54,000	CHF 16,425
Cash at end of Year 1	minus CHF 7,434	plus CHF 49,581
Months of Year-2 cost funded	None	Nearly two and a half
Who owns the architecture	Nobody — decisions get made by whoever is available	One person, accountable, with the standing to say no
What happens at 25 clubs	Support and customisation swamp a contractor with no stake	A partner who has already productised it, because their equity depends on the margin

That is the commercial case. The other half is simpler: a company that processes children's data and families' money needs someone who loses sleep over tenant isolation and payment reconciliation. That person cannot be billing by the hour.

1.4 What you would actually be building

This is not a CRUD app with a sports skin. The genuinely interesting problems, in the order they arrive:

- **Multi-tenant isolation that has to be provably correct.** Every table carries a club identifier and row-level security is forced at the database. Children's data, medical notes and consent records. A leak is not a bug, it is the end of the company and a personal liability under the revised Federal Act on Data Protection.

- **Payment reconciliation on Swiss rails.** TWINT, card and QR-bill, generated to Implementation Guidelines v2.4, with webhook handling, duplicate protection, refunds, and a reconciliation state that never leaves a parent believing their money has vanished. This is the hardest and most important thing in the product.
- **Offline-first attendance capture.** A coach in a sports hall with no signal, wearing gloves, taking attendance in under ninety seconds. Local queue, background sync, conflict resolution, visible state. If a coach keeps a paper backup we have failed.
- **Four-language everything, including outbound message translation,** with tone preserved. Not a config flag — a first-pixel architectural decision.
- **A role-scoped AI layer, from Cycle 3.** Per-club retrieval over payments, schedules and communications, with anonymisation before anything leaves the platform, human approval on every outbound message, and immediate escalation on anything touching health or child welfare.

If none of that sounds interesting, the rest of this document does not matter and we should both save the time.

02 THE ROLE

2.1 Decision authority and joint accountability

Decision	Owner	Note
Architecture, stack, tooling, code standards	**CTO leads**	Primary implementation authority. Founder consultation is required for material business, budget, customer or strategic consequences. All resulting IP belongs to the company.
Security posture and data protection design	**CTO leads · Joint approval**	The CTO designs the controls. Material regulatory exposure, children's data, financial data and accepted-risk decisions require joint approval.
Engineering hiring and contractor selection	**CTO recommends · Joint approval**	The CTO selects and manages candidates. Appointments and contractor commitments require joint approval within the agreed budget.
Sequencing of the technical roadmap	**Joint**	The Founder sets product and commercial priorities; the CTO controls feasibility, dependencies and implementation order. Neither commits the company unilaterally.
What gets built, and what does not	**Founder leads · CTO consulted**	The Founder sets product priorities. The CTO advises on feasibility, security, technical debt and delivery consequences before commitments are made.
Pricing, packaging, which clubs we take	**Founder**	The Founder leads commercial terms. Technical scope, timing and security commitments require CTO review before being promised externally.
Fundraising, investor relations, the cap table	**Founder leads · CTO consulted**	The Founder leads. The CTO reviews technical representations and transactions materially affecting the CTO's role or holding.
Release gates	**Joint**	The CTO approves technical and security readiness; the Founder approves customer, operational and commercial readiness.
Anything touching minors' data or a safeguarding concern	**Joint veto**	Either may stop a release involving children's data, safeguarding, privacy or material regulatory risk. An agreed independent review is required to proceed.
Deadlock	**Founder casting vote**	Founder casting vote in Years 1–2 on ordinary commercial matters only. It cannot override the CTO's security veto, company IP ownership or reserved joint decisions. Revisited at seed.

2.2 What the first ninety days look like

These are not aspirations. They are the gates in the operational rollout, and the whole company is scheduled around them.

When	What has to be true	Whose gate
By 20 September 2026	Ten workflow audits done with real clubs and the price tested against real buyers	Mine
By 18 October 2026	**A real parent registers a real child through a public link and pays by TWINT, and the invoice reconciles automatically with no manual step**	**Yours**

When	What has to be true	Whose gate
By 10 November 2026	FIT Digital grant application filed; first founding club signed and onboarding started	Mine
By 22 November 2026	Club #1 genuinely operating on the platform — logging in weekly, one full registration-to-attendance cycle on real data	Joint
By 31 January 2027	Five founding clubs signed, each running a full cycle	Joint

The 18 October gate is the one that matters. Everything downstream of a broken payment chain is theatre. If it is not working by 31 December we stop Cycle 2 entirely, run the founding clubs manually, and fix it. That decision is already written into the plan so that neither of us has to make it under pressure.

03 FOUR STRUCTURES

There is no single right answer here — it depends on how much of your working life you want to put into this. All four are real offers. All four are priced from the same model.

	A — Co-founder CTO	B — Fractional CTO	C — Build partner	D — Milestone earn-in
Commitment	4–5 days a week	2–3 days a week	An agency team, project-based	3–4 days a week
Equity granted	20%	10%	6%	15%, milestone-gated
After round and pool	16.2%	8.1%	4.9%	12.2%
Vesting	4 years, 12-month cliff	4 years, 12-month cliff	3 years, 6-month cliff	Against delivery milestones
Retainer Y1 / Y2 / Y3 per month	1,200 / 4,000 / 7,000	2,500 / 5,000 / 7,000	None — rate card only	1,000 / 3,000 / 6,000
Onboarding share Y1 / Y2 / Y3	25% / 20% / 15%	30%	55%	40%
Year-1 cash cost to DLANG	**CHF 16,425**	CHF 32,430	CHF 49,455	CHF 15,240
Three-year cash	CHF 202,055	CHF 237,910	CHF 350,835	CHF 195,880
Equity value at Year 3, base case	**CHF 420,072**	CHF 210,036	CHF 126,021	CHF 315,054
Total three-year value to you	**CHF 622,127**	CHF 447,946	CHF 476,856	CHF 510,934
Fits the funded Year 1?	**YES**	No — needs the full plan	No — needs the full plan	**YES**

Equity values assume a 4× ARR trade sale on the base case: 118 clubs, CHF 648,259 of ARR at the end of Year 3. Small vertical SaaS trades at roughly 3× to 6×. Full working in the CTO_Package sheet of the financial model.

3.1 What each one is actually for

Structure	It suits you if	It does not suit you if	What it costs DLANG
A — Co-founder	You want to run the technology of a company rather than deliver work for one, you can live on CHF 1,200 a month for a year, and you want the equity that goes with that risk.	You need income now, or you cannot give this four days a week. Taking A and delivering B is worse for both of us than taking B honestly.	Least cash of any option in Year 1, and the largest equity. It is the only structure that fits the year the round actually funds.
B — Fractional	You have other income, you want meaningful ownership without betting your year on it, and you are comfortable that someone else may eventually be hired above you.	You want to be the technical decision-maker long term. At 2–3 days a week you will be overtaken by whoever comes next.	Nearly twice the Year-1 cash of A for half the equity. Honest, but it means the capital-light Year 1 is off the table.
C — Build partner	You are an agency or a small studio, you want a long-term client with a stake attached, and you can carry a discounted rate in exchange for equity.	You want to own the product direction. You would be a supplier with an interest, not a partner.	Most expensive, and the structure most likely to drift toward customisation revenue. The guardrails in section 7 exist mainly because of this option.
D — Milestone earn-in	You want to earn ownership by delivery rather than by time, and you would rather be measured on outcomes than on days.	You dislike having your equity depend on things partly outside your control — a gate can slip for commercial reasons as well as technical ones.	Cheapest in cash and lowest risk to DLANG. Hardest to sell to a strong candidate, which is exactly why it is offered rather than imposed.

MY RECOMMENDATION, AND WHY

Structure A. Not because it is cheapest — though in Year 1 it is — but because it is the only one where our incentives are the same on every decision. In B and C you earn more when there is more work; in A you earn more when there are more clubs. That difference decides whether this becomes a software company or a consultancy with a subscription attached, and it decides it in the first six months.

If A is not right for your circumstances, say so and take D. I would rather have you honestly at three days a week than nominally at five.

04 THE RECOMMENDED TERM SHEET

This is Structure A in full. It is a term sheet, not a contract — a Swiss lawyer drafts from it, and both of us take our own advice before signing anything.

4.1 Equity

Term	Detail
Grant	20% of the company, issued at nominal value at incorporation or immediately after, and in any case BEFORE the EUR 50,000 round closes.
Why before	If the grant comes after the round, the investor will require anti-dilution protection on their 10% and I absorb the entire dilution alone. Doing it in the right order costs neither of us anything and is worth several points of my holding.
Resulting cap table	Founder 64.8% · CTO 16.2% · Investor 9% · Option pool 10%. After a CHF 300,000 seed at CHF 2.5m pre-money: Founder 57.9% · CTO 14.5%.
Vesting	Four years from the start date. Twelve-month cliff — nothing vests before then. Monthly thereafter, 1/48th per month.
Founder reverse-vesting	I reverse-vest my own holding on the identical schedule from the same date. An investor will require it at the seed round in any case; offering it now rather than being asked for it later is the clearest signal of good faith I can give you.

Term	Detail
Acceleration	Double trigger. On a change of control combined with your involuntary termination or a material diminution of your role within twelve months, 50% of unvested equity accelerates.
Unvested equity	The company holds a call option over unvested equity at nominal value, exercisable on departure for any reason.
Good leaver	You keep everything vested. Death, incapacity, mutual agreement, or termination by the company without cause.
Bad leaver	The company may buy back all equity, vested and unvested, at nominal value (or the lowest price permitted by applicable law). Bad leaver means fraud, gross misconduct, wilful misconduct causing material harm, material breach of the IP or confidentiality terms, or breach of the agreed non-compete or non-solicit obligations. It does not mean leaving because the relationship stopped working or disagreeing in good faith. The shareholders' agreement will define the process, evidence threshold and exercise period.
Transfer	Right of first refusal to the company, then to me. Tag-along and drag-along on a sale. No transfer to a competitor at any time.
Anti-dilution	None. Neither of us gets it. Founders take dilution alongside each other.

4.2 Cash

	Year 1	Year 2	Year 3	Three-year total
Monthly retainer	CHF 1,200	CHF 4,000	CHF 7,000	—
Retainer, annual	CHF 14,400	CHF 48,000	CHF 84,000	CHF 146,400
Share of onboarding fees	CHF 2,025 (25%)	CHF 7,560 (20%)	CHF 11,070 (15%)	CHF 20,655
Project delivery income	—	CHF 10,000	CHF 25,000	CHF 35,000
Total cash	**CHF 16,425**	**CHF 65,560**	**CHF 120,070**	**CHF 202,055**
Engineering budget in the plan	CHF 18,000 (capital-light)	CHF 102,000	CHF 192,000	CHF 312,000
Headroom for other engineering	CHF 1,575	CHF 36,440	CHF 71,930	—

Read the last two rows carefully, because they are the point. This proposal does not add a franc to the plan. The engineering budget is already there. What changes is who it goes to and what they get in return — and in Year 3 there is still CHF 71,930 inside that budget to hire a second engineer, which would be your decision to make.

Review trigger	What happens
At 15 paying clubs	Retainer review. The Year-2 rate is a floor, not a ceiling.
At CHF 20,000 MRR	Move to a market salary for the role, benchmarked against Swiss senior engineering, and review whether the remaining onboarding share should reduce further or end.
At a seed round	Full compensation review for both of us, with the investor in the room. Neither of us should be on a founder's draw once the company is properly funded.
If a milestone slips for commercial reasons	Your retainer is not affected. You are not paid on my ability to sell.

4.3 Intellectual property, and the things that are not negotiable

- **All source code, object code, documentation, architecture, database schemas, configurations, designs, inventions, improvements and other work product created specifically for DLANG belong exclusively to the company from creation. This applies during the five-week paid trial as well as after appointment. The trial agreement and the definitive agreements will include a present assignment of all relevant intellectual-property rights, delivery of all code and credentials into company-controlled repositories, and any waivers or further-assurance obligations permitted by law. Pre-existing tools must be identified in writing and licensed perpetually to the company, or replaced.**
- **You warrant that nothing you contribute is encumbered** by another employer, a client agreement, or a copyleft licence that would contaminate a commercial product. This is the first thing a diligence lawyer tests and it is cheap to get right now.
- **No direct billing of DLANG clubs, ever.** The company invoices the club and pays you. This protects you as much as me: it means you are never in a commercial negotiation with a customer whose product you also have to maintain.
- **On exit, a narrowly tailored non-compete will apply for 12 months, limited to directly competing club-sports operating platforms in the territories and customer segments where DLANG is actively operating at departure, to the extent enforceable under Swiss law. A 24-month non-solicit will prohibit solicitation of DLANG clubs, prospects, employees and contractors. The shareholders' agreement will define reasonable carve-outs for passive investment, general employment not directed at a competing product, and relationships independently established without use of DLANG confidential information.**
- These restrictions, together with confidentiality and IP ownership, survive departure. The Swiss lawyer preparing the definitive agreements must calibrate duration, geography, scope and any required compensation so the protections are enforceable and proportionate.

05 WHAT YOU WOULD EARN

Three components, on three scenarios. All of it computed from the same model the investors see.

5.1 Equity value at the end of Year 3

Scenario	Clubs	Year-3 ARR	Enterprise value at 4× ARR	Your 16.2%
Bear — free alternatives hold, beta stalls	65	CHF 357,638	CHF 1,430,553	**CHF 231,750**
Base — founder-led selling, no channel	**118**	**CHF 648,259**	**CHF 2,593,035**	**CHF 420,072**
Bull — a federation or school network refers	150	CHF 822,787	CHF 3,291,150	**CHF 533,166**

Weigh the base row, not the bull row. The bull case is the number in the investor deck and it requires a distribution channel that does not exist today. I am not going to recruit you on it. If you want to sanity-check the whole thing, the model has a scenario switch and you are welcome to move any assumption in it.

5.2 The three-year picture

	Bear	Base	Bull
Cash over three years	CHF ~190,500	CHF ~202,100	CHF ~213,300
Equity value at Year 3	CHF 231,750	CHF 420,072	CHF 533,166

	Bear	Base	Bull
Total	**CHF ~422,250**	**CHF ~622,200**	**CHF ~746,500**
Equivalent annual value	CHF ~141,000	CHF ~207,000	CHF ~249,000

Cash varies by scenario because the services share moves with the number of clubs onboarded. Equity value assumes a 4× ARR trade sale and is unrealised — it is worth nothing until there is a liquidity event, and there may never be one.

THE COMPARISON YOU ARE ACTUALLY MAKING
A senior full-stack engineer in Switzerland earns roughly CHF 130,000–170,000 a year, paid monthly, with no risk. The base case here is worth about CHF 207,000 a year — but most of it is unrealised equity, the cash in Year 1 is CHF 16,425, and the whole thing can go to zero.
You should take this only if you would find the work interesting at half the number, and only if you can afford the first year. Anyone who takes it on the strength of the total is going to be unhappy by March.

06 THE DELIVERY STREAM: CONSTANT WORK THAT GROWS

Equity is a bet on an event that may not happen. What makes this liveable in the meantime is that there is real, paid, recurring delivery work built into the business model — and it grows automatically with every club we sign.

This section matters more than the equity section for most people, so it is set out in full.

6.1 The six streams

Stream	What the club pays	How often	Your share	Year-3 volume	Your Year-3 income
Technical onboarding and data migration	Inside the CHF 750–2,900 setup fee	Every single new club	25% Y1 · 20% Y2 · 15% Y3	82 new clubs	**CHF 11,070**
Multi-site and federation configuration	CHF 3,000–8,000 per project	Per federation or academy-group deal	40%	2 deals	CHF 8,000
White-label branded parent app	CHF 2,500 setup + CHF 200/month	Per club that takes it	30%	4–5 clubs	CHF 4,000
Accounting and federation integrations	CHF 2,000–6,000 each	Per integration built	40%	5–6 builds	CHF 13,000
AI module build-out, Cycles 3–4	Funds the CHF 90–199/month modules	Continuous from Month 13	Covered by retainer	—	—
Managed hosting, monitoring, incident response	Internal	Monthly	Covered by retainer	—	—
TOTAL					**CHF 36,070**

Note what the biggest line is. It is not bespoke development — it is onboarding, and it recurs with every club. The onboarding share starts at CHF 2,025 in Year 1 at 25%, moves to 20% in Year 2, and reaches CHF 11,070 in Year 3 at 15%. The percentage falls as the retainer rises, while the absolute opportunity still grows as more clubs join. You do not have to sell, negotiate, or source this work; it arrives because the company grows.

6.2 Why the share is on revenue and not on hours

This is the single most important design decision in the whole proposal, and it is worth being explicit about why.

If you were paid by the hour	You are paid a share of revenue instead
You earn more when onboarding a club takes longer.	You earn more when we onboard more clubs.
Automating the CSV import costs you income.	Automating the CSV import lets you take on more clubs at the same fee.
A club that needs three days of custom work is a good month.	A club that needs three days of custom work eats your margin, so you productise it.
Support load is billable, so nobody fixes the confusing screen.	Support load is dead time, so the confusing screen gets fixed.
Our interests diverge the moment the product gets good.	Our interests are identical at every point.

The uncomfortable version, said out loud: a technical partner holding equity and billing hourly for customisation has a quiet incentive to build a product that needs customising. That is how vertical SaaS companies turn into agencies, and it is why their valuation multiple collapses from four times revenue to about one. I am not accusing anyone of anything — it is simply what the incentive does over three years if nobody names it. So we name it now, and we structure around it.

6.3 The rate card

One published card. No bespoke pricing per deal, because a rate card is what turns services from a negotiation into a product line.

Item	Price to the club	Notes
Standard club technical onboarding	Inside the tier setup fee	Import, mapping review, payment connection, invoice template, branding. Target under four hours by Month 12.
Complex migration	CHF 1,200 supplement	More than two seasons of history, or a non-standard source system.
Multi-site or federation configuration	CHF 3,000–8,000 by scope	Scoped and quoted before work starts. Never open-ended.
Integration build	CHF 2,000–6,000	Accounting export, federation reporting, calendar sync.
White-label parent app setup	CHF 2,500	Plus CHF 200/month recurring, of which you take 15% for the first 24 months.
Senior engineering day rate, partner rate	CHF 900	Against a Swiss market rate of CHF 1,100–1,400. The discount is what the equity pays for.
Out-of-hours incident response	CHF 1,400 per day	Capped at four days per quarter. Beyond that we have an architecture problem, not a billing opportunity.
Anything not on this card	Quoted	And it must clear a 50% gross margin to DLANG, or we decline the work.

6.4 Where the work goes after Year 3

A fair question from anyone considering this: does the delivery income dry up once onboarding is automated? It changes shape rather than disappearing.

- **Years 1–2 — build and onboard.** The platform itself, plus per-club migration. Highest hands-on volume.
- **Years 2–3 — productise and integrate.** Onboarding becomes self-serve, and the work moves to integrations, federation configurations and the AI modules. Fewer, larger, more interesting pieces.

- **Year 3 onwards — platform and scale.** Multi-site architecture, the export track for EUR-market clubs, performance at several hundred tenants, and leading a small engineering team. By this point the retainer has been replaced by a market salary and the services share has been reduced deliberately, because by then the equity should be doing the work.

> **THE TRAJECTORY, STATED HONESTLY**
> The services share is a bridge, not a destination. It exists because I cannot pay you properly in Year 1 and I am not going to pretend otherwise. It should shrink as the salary grows, and if it has not shrunk by Year 3 then something has gone wrong with the product — and the equity we both hold will be worth less because of it.

07 THE GUARDRAILS

Written now, while we agree with each other. Every one of these protects both sides.

7.1 Protecting the business from the services trap

Guardrail	The rule	Why it exists
The productisation clause	Anything customised for a second club becomes a core configuration option, owned by DLANG, chargeable to nobody.	This is the clause that protects the valuation multiple. Without it, the tenth club pays for work the second club already funded, and the product never converges.
The services ceiling	Services must stay below 20% of total revenue. Year-3 model figure is 13.6%.	Above 20% we are a consultancy with a subscription attached, and we would be valued like one — roughly a quarter of the multiple.
The margin floor	DLANG keeps at least 50% gross margin on every services engagement. The onboarding share steps down from 25% to 20% to 15%, leaving increasing room for support, automation and reinvestment.	No exceptions for a strategically important club. A loss-making service line is not strategic, it is just loss-making.
The billing rule	DLANG invoices the club. Always. You are paid by DLANG.	Protects the customer relationship, protects you from being a supplier to your own product's customers, and keeps the revenue recognisable to an investor.
Rate discipline	One rate card, published, reviewed annually.	Bespoke pricing per deal is how services margins die quietly.
Scope discipline	Every project scoped and quoted before work starts. No open-ended engagements.	An open-ended engagement is a dispute with a start date.

7.2 Protecting you

Guardrail	The rule
Your equity is real equity	Issued shares with vesting, not options, not phantom units, not a promise in an email. Registered, and visible to you.
I vest too	Identical schedule, same start date. If I walk away in month eight, my unvested holding is subject to the same call option as yours.
Your retainer is not contingent on my sales	If a milestone slips because I could not close a club, you are still paid. You are not underwriting my go-to-market.

Guardrail	The rule
Technical authority is contractual	The decision-rights table in section 2.1 goes into the shareholders' agreement, not just into a conversation.
Bad-leaver is narrowly defined	Fraud, gross or wilful misconduct causing material harm, material IP or confidentiality breach, or breach of the agreed non-compete or non-solicit. The company may repurchase vested and unvested equity at nominal value or the lowest price permitted by law. Ordinary resignation or good-faith disagreement is not a bad-leaver event.
Full visibility	Monthly management accounts, the cap table, the pipeline, the bank balance. You are a shareholder; you should never have to ask.
A written safeguarding veto	You can stop any release on child-data or safeguarding grounds, unilaterally, and I cannot overrule it. That protects you personally as well as the company.

7.3 The tripwires we agree to watch

Metric	Threshold	What we do if it breaks
Services as a share of revenue	Below 20%	Stop taking custom work and productise the backlog until it falls.
Onboarding hours per club	Below 5 by Month 12	Freeze new club acquisition and fix the import and setup flow.
Gross margin	Above 75%	Support cost per club is the usual culprit. Build in-product help before adding clubs.
Support tickets per club per month	Below 4	The product is confusing somewhere specific. Find it from the support log.
Weekly shipped change	Never zero for two consecutive weeks	Something is blocked and neither of us has said so. Escalate immediately.

08 SWISS MECHANICS

Three things that need a Swiss lawyer and a Swiss tax adviser before anything is signed. I am setting out the intended structure so both of us brief them from the same page — this is not legal advice and neither of us should treat it as such.

8.1 Entity and how the equity is actually held

Question	Intended answer	Why
Which entity	GmbH in Canton de Vaud, incorporated before the first club payment	Vaud because the FIT Digital grant — CHF 20,000, non-repayable — requires it. GmbH because CHF 20,000 of capital is achievable now where an AG's CHF 100,000 nominal is not.
How is the CTO equity issued	Quotas issued at nominal value in the founding deed, or in a single capital increase immediately after	A GmbH quota transfer requires a notarial deed every time. Issuing once at the start avoids notarising each vesting tranche, which would otherwise be absurd.
How does vesting work without repeated transfers	The quotas are issued in full at the start; the shareholders' agreement gives the company a call option over the unvested portion at nominal value	This is the standard Swiss workaround. Economically identical to vesting, legally far cheaper.
When do we convert to an AG	At the seed round, or when the option pool is first granted to employees	An AG gives transferable registered shares without notarisation and keeps the shareholder register private. Conversion costs a few thousand francs and is worth it then, not now.

Question	Intended answer	Why
Who pays for the legal work	The company	Both of us should nonetheless take independent advice on our own position, and I would think less of you if you did not.

8.2 Tax — the point most founders get wrong

> **GRANT EARLY, AT NOMINAL VALUE, OR IT COSTS YOU REAL MONEY**
>
> In Switzerland, receiving equity for services is generally a taxable benefit measured as the difference between what you pay for it and what it is worth at the moment of grant. Today the company is worth close to nothing, so a grant at nominal value creates close to no taxable benefit.
>
> Grant the same 20% eighteen months from now, with paying clubs and a closed round, and the same equity carries a taxable value — payable in cash, by you, in a year when your cash income from this is CHF 48,000.
>
> The action: grant at incorporation, and consider asking the cantonal tax administration for an advance ruling to fix the valuation. That ruling is, after the conversion-price clause in the investor loan, the second most valuable piece of professional advice available to this company.

Two related points. First, if you would be working through your own company rather than as an individual, the analysis changes and needs checking — including whether the arrangement risks being treated as disguised employment, which is a live issue in Switzerland. Second, the services income is ordinary income and should be invoiced properly, with VAT once either of us crosses the CHF 100,000 threshold.

8.3 Sequencing — the order actually matters

	Step	Why it is in this position
1	Paid trial, five weeks	Nothing else happens until we have worked together on something real. The paid trial agreement includes confidentiality and immediate assignment to the company of all trial code and work product.
2	Terms agreed in principle, in writing	A one-page summary both of us have signed. Not a contract yet.
3	Tax advice and, if sensible, an advance ruling	Before incorporation, because the valuation at grant is what gets ruled on.
4	Incorporate the GmbH in Vaud, with your quotas in the founding deed	One notarisation covering both of us.
5	Shareholders' agreement signed — vesting, IP, decision rights, leaver terms	Before any code is written under the new arrangement.
6	Close the EUR 50,000 round	**After the grant, never before. This is the step whose order is worth several percentage points of my holding.**
7	FIT Digital application filed	Deadline 10 November 2026. A two-to-five person team with at least one member domiciled in Vaud is an eligibility requirement — your involvement may help satisfy it.

09 THE TRIAL, BEFORE ANYTHING IS SIGNED

Neither of us should commit four years on the strength of a few conversations. So we do a scoped, paid piece of work first, and both of us keep the right to walk away at the end of it with no hard feelings and no obligation.

9.1 The engagement

	Detail
Duration	Five weeks, starting as soon as you can.
Fee	CHF 9,000–11,000 fixed, agreed before we start. Paid whatever the outcome, including if I decide not to proceed.
The deliverable	The payment reconciliation chain, working end to end on real money. All code, documentation and related work product created during the trial are assigned exclusively to DLANG from creation and committed to company-controlled repositories.
What that means specifically	A parent registers a child through a public link. They pay by TWINT. The webhook fires. The invoice marks itself paid. The admin dashboard updates. Nobody touches anything. Plus: failure states, timeouts, duplicate protection, refunds, and a visible reconciliation status so nobody ever thinks the system has lost their money.
Why this piece	It is the hardest and most important thing in the product, it is Gate 2 of the operational rollout, and it is due on 18 October. If you build it, the company has cleared its most dangerous gate. If it does not work, we have both learned something worth far more than the fee.
What you get	Full access to the codebase, the architecture documents, the six user journeys, the permissions model, the business plan and the financial model. No black boxes, no NDA theatre beyond a standard mutual confidentiality agreement.
What I get	Five weeks of watching how you work, which is worth more than any interview process I could design.

9.2 What I will be assessing, stated in advance

I am watching for	Because
Whether you ship something every week	The company's operating rhythm depends on it. A week with no shipped change is a week the founding clubs stop believing the roadmap.
How you handle tenant isolation	Row-level security forced at the database, tested, with a regression suite. This is the control that stands between us and a company-ending incident.
What you do when you are blocked	Whether you say so within a day or disappear for a week. This matters more than raw speed.
Whether you read the domain material	There are six documented user journeys with the friction points already identified. Someone who builds from them is worth twice someone who builds from my verbal description.
Whether you over-engineer	We need a payment chain that works for twelve clubs, built so it will not have to be thrown away at two hundred. Not a platform for two hundred built for twelve.
How you disagree with me	You will be right about technical things and I will push back anyway. I need to know how that conversation goes before we are four years into it.

9.3 What you should be assessing

This runs both ways, and you should use the five weeks properly. Things worth testing about me:

- Whether I actually sell anything during those five weeks, or whether I only talk about selling. Ten workflow audits are scheduled in the same window — ask to see the written summaries.
- Whether the founding clubs are real people with names and phone numbers, or a pipeline in a spreadsheet.
- Whether I give you the bank balance when you ask for it, without hesitating.
- Whether I change the roadmap every week. Ask what changed since the plan was written and why.
- Whether the claims in the sales material are ones I can source. I have audited them once already and removed several that I could not. Ask me which ones and why.

One thing you will find if you look, so I will save you the time: the investor deck and the financial model told slightly different stories until recently. Year 3 showed 150 clubs in the deck and 118 in the model. I have reconciled them — the deck's number is now the model's upside case, calibrated to land on 150 exactly, and there is a written bridge between the two. I am telling you this rather than letting you find it, because how a founder handles that kind of discrepancy is a fair thing to judge them on.

10 IF IT DOES NOT WORK

Most of these partnerships end. It is worth agreeing how, while both of us are relaxed about the possibility.

Situation	What happens
Either of us walks after the trial	The fee is paid. All trial code and work product belong exclusively to the company under the signed trial IP assignment; no equity is granted, and we part on good terms. This is a normal outcome, not a failure.
You leave before the twelve-month cliff	No equity vests. Cash earned to date is paid. The company keeps the IP. You keep the reference and I will give you a good one.
You leave after the cliff, on good terms	You keep everything vested. The company exercises its call option on the unvested portion at nominal value. You remain a shareholder with full information rights.
I remove you without cause	Good-leaver treatment, plus three months' retainer, plus twelve months of accelerated vesting. I should carry a cost for changing my mind.
You are removed for cause	Bad-leaver treatment applies as defined in section 4.1: for fraud, gross or wilful misconduct causing material harm, material IP or confidentiality breach, or breach of the agreed exit restrictions, the company may repurchase vested and unvested equity at nominal value or the lowest price permitted by law.
I leave or become unable to continue	My unvested equity is subject to the identical call option. The shareholders' agreement gives you the right to appoint a replacement chief executive with investor consent.
The company fails	There is nothing to divide. The IP stays with the company and is dealt with in the liquidation. Neither of us has a claim on the other.
We disagree irreconcilably	I hold the casting vote in Years 1–2. If it comes to that, the honest answer is that one of us should leave, and the leaver provisions above are how that happens without lawyers.

WHY YOU MIGHT SAY NO, AND WHY I WOULD UNDERSTAND

The cash in Year 1 is CHF 16,425. That is not a living wage in Switzerland and I am not going to dress it up as one.

There are no paying customers. The willingness to pay CHF 490 a month has not been proven against a market where the leader gives the software away free. If the first ten workflow audits come back badly, the commercial model changes and your equity is worth a fraction of the base case.

The founder is the product manager, the salesperson, the support desk and the operator of the reference customer. That is a concentration risk you would be underwriting alongside the technical risk.

If any of those is disqualifying, say so now rather than at the cliff. I would rather find the right person in three months than the wrong one in three weeks.